

24STCV21960 24STCV21960

County: los-angeles

Division: Civil Law and Motion

Department: 730

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Case Number: 24STCV21960 Hearing Date: July 22, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

SABRA

QASSIMYAR

Plaintiff,

vs.

L&F

BROWN LAW FIRM

Defendant.

Case No.:

24STCV21960

Hearing

Date:

July 22,

2026

ORDER

GRANTING MOTION TO CONFIRM ARBITRATION

AWARD and denying motion to vacate arbitration award

I. BACKGROUND

Plaintiff Sabra Qassimyar ("Qassimyar") entered into an agreement with Defendant L&F Brown Law Firm ("LFB") to represent her in a litigation manner. LFB allegedly failed to provide the agreed upon legal services and inappropriately charged Qassimyar. Qassimyar sues LFB for breach of contract, unjust enrichment, fraudulent misrepresentation.

On February 28, 2025, the Court granted LFB's motion to compel arbitration.

On June 11, 2026, LFB filed the instant motion to confirm the arbitration award. Qassimyar opposes. LFB replies.

On June 11, 2026, Qassimyar filed the instant motion to vacate the arbitration award. LFB opposes. Qassimyar replies.

II. LEGAL STANDARD

"Any party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate the award." (Code of Civil Procedure § 1285.[1]) Such a petition must set forth the substance, or attach copies of: the arbitration agreement, award, and any written opinion. (§ 1285.4.) It must be served between 10 days and 4 years from the date the award was served on the petitioner. (§§ 1288 & 1288.4.) The other party may respond to the petition. (§ 1285.2.)

"If a petition or response under this chapter is duly served and filed, the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding." (§ 1286.) "If an award is confirmed, judgment shall be entered in conformity

therewith.” (§ 1287.4.)

The

petition must: “(a) [s]et forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement”; “(b) [s]et forth the names of the arbitrators” and “(c) [s]et forth or have attached a copy of the award and the written opinion of the arbitrators, if any.” (Code Civ. Proc., § 1285.4.) The petition must also “name as respondents all parties to the arbitration and may name as respondents any other persons bound by the arbitration award.” (Code Civ. Proc., § 1285.) A petition to confirm an award must be served and filed within four years after the date the petitioner was served with a signed copy of the award. (Code Civ. Proc., § 1288.)

III. DISCUSSION

Parties dispute whether the

arbitration award, issued on May 26, 2026, by Charles Dick (“Dick”), Esq., should be confirmed or vacated. The arbitration award’s terms are as follows:

- 1) dismissal of Qassimyar’s claims, with prejudice;
- 2) Qassimyar is to pay LFB the sum of \$17,219.00 by June 1, 2026; and 3) each party is responsible for its own fees and expenses. (LFB’s Mot., Attachment 8(b).)

LFB requests the Court confirm the arbitration award.

Qassimyar requests the Court vacate the arbitration award and set a new arbitration hearing, as the arbitrator substantially prejudiced petitioner’s rights and failed to disclose within the time for disclosure a ground for disqualification for which the arbitrator was aware. (Qassimyar’s Mot., ADR-106, Sec. 9, subd. (c)(1).)

For the Court to confirm an

arbitration award, the submitted petition must: 1) contain a copy of the agreement to arbitrate; 2) identify the names of the arbitrators; 3) set forth or have attached a copy of the award and written opinion of the arbitrators; and 4) name as respondents all parties to the arbitration. (§§ 1285.4 and 1285.) The petition and written notice of the time and place of the hearing upon which the petition is based shall be served in the manner provided in the arbitration agreement. (§ 12904., subd. (a).)

A. Initial

Requirements

LFB

submitted a copy of the engagement agreement, which contained an agreement to resolve all disputes for by arbitration, satisfying the first element. (LFB's Mot., Attachment 4(b).) The moving papers identify Arbitrator Charles Deck, Esq. as the arbitrator and names Qassimyar, the only other party to the arbitration, satisfying the second and fourth requirements. (LFB's Mot., ADR-106, Sec. 1 and 6.) LFB also attached a copy of the final award and written opinion of Dick, satisfying the third element. (LFB's Mot., Attachment 8(c).)

LFB served the petition via electronic service.

As the arbitration agreement does not specify the manner of service, and Qassimyar has appeared in this action, service may be made pursuant to section 1010, et seq.; electronic service is appropriate. (§ 12904, subd. (c).)

LFB had made an initial showing to confirm arbitration award. The burden shifts to Qassimyar to prove why the arbitration award should be vacated or otherwise amended.

B. Vacate

/ Amend Arbitration Award

1. Failure to Disclose

Qassimyar first requests the Court vacate the arbitration award as Dick failed to timely disclose a personal relationship with Brett Weaver ("Weaver"), a defendant attorney in the underlying case.

At the time of Dick's initial disclosure, no party had put Dick on notice as to Weaver's relation to this case. (LFB Opp., Belilove Decl.

¶ 14; LFB's Mot.,

Attachment 8(c).) Although Qassimyar had stated she intended to call Weaver as a witness, she only made the disclosure to LFB's counsel. (LFB Opp., Belilove Decl. ¶ 15.) LFB later disclosed it may also call Weaver or Tim Dillon ("Dillon") (along with one other witness), but did not make any such disclosure to Dick. (Id. at ¶ 16.) Qassimyar objected to the addition of three witnesses

at the April 7, 2026, final status conference, but did not name Weaver or Dillon by name. (Id. at ¶ 17.)

At that point, Dick began to read prehearing briefs, finding Dillon's name for the first time. Dick disclosed his relationship with Dillon following this discovery. (Qassimyar Mot., Qassimyar Decl. ¶ 99, Ex. 31.) It was not until April 30, 2026, that Weaver was disclosed as a potential witness. (LFB Opp., Belilove Decl. ¶ 18.) Dick immediately disclosed his relationship to Weaver; Qassimyar did not object to the Arbitrator's continued service after the disclosure. (Id. at ¶¶ 18-19.) Neither Weaver nor Dillon were called to testify. (LFB's Mot., Attachment 8(c).)

There is no indication Dick's relationship with Weaver could have been disclosed at any time prior to this time. There is also no evidence Qassimyar objected to Dick's status as arbitrator after this disclosure—Qassimyar only argues she objected to discussion of Weaver's involvement. Therefore, the Court will not vacate the award on this basis. There is no appearance of partiality in Dick immediately disclosing his relationship with a potential witness, upon learning the witness's name, and continuing on absent objection from either party.

2. Exceeding Arbitration Powers

Qassimyar next requests the Court vacate the arbitration award because the arbitrator decided matters outside the scope of the dispute submitted by the parties. Pursuant to section 1286.2, subdivision (a)(4), the Court shall vacate arbitration upon a showing of the arbitrator exceeding the scope of their powers.

Qassimyar argues Dick exceeded the scope of the arbitration because Qassimyar notified Dick, JAMS, and LFB she had "significantly narrowed" her claims and was only seeking to litigate personal claims, not business claims. (Qassimyar Mot., Qassimyar Decl. ¶ 53, Ex. 14.) LFB acknowledge Qassimyar narrows her claims to dismissal of her personal causes of action only. (Qassimyar Mot., Qassimyar Decl. ¶ 62, Ex. 17.). The evidentiary hearing only discussed personal issues. (Id. at ¶ 64.)

However, Qassimyar argues, the arbitration award wrongfully

evaluated the merits and evidentiary support of the removed business causes of action, as Dick identified the business causes of action as frivolous and that LFB did not succeed in assembling probable cause. (LFB's Mot., Attachment 8(c).)

There is no indication the business claims were evaluated in regards to determining liability as to Qassimyar's claims. As noted in LFB's opposition, these were considered for purposes of evaluating LFB's cross-claim for unpaid fees. (LFB Opp., Belilove Decl. ¶ 21.) Qassimyar could not have narrowed the scope of claims to dismiss LFB's claims, absent LFB's own action to dismiss said claims. There is no indication LFB dismissed said claims. The award also specifically identifies Qassimyar agreed to narrow the scope of her claims, noting it did not rule on these issues. (LFB's Mot., Attachment 8(c).) There is no evidence to show arbitration award awarded relief based upon the dismissed claims.

There is no indication Dick exceeded the scope of his power as an arbitrator. The Court will not vacate the award on this basis.

3. Contrary Provisions

Qassimyar next requests the Court vacate the arbitration award because the arbitrator's conduct substantially prejudiced Qassimyar's right to a fair proceeding. Pursuant to section 1286.2, subdivision (a)(5), the Court shall vacate arbitration upon a showing of the arbitrator substantially prejudiced a party by refusing to postpone the hearing upon sufficient cause being shown or refusal to hear evidence material to the controversy.

Qassimyar argues Dick represented time would be reserved at the conclusion of the hearing to review the master trial binder to remove improper exhibits. Qassimyar allegedly relied upon this representation. It never occurred and Dick left with an improper exhibit of a demand letter still in the binder. There is no evidence to suggest that this document was ever placed in the binder, as it was subject to objection, and would have been improper to include. There is also no evidence to suggest that Dick reviewed the demand letter and that it influenced his ruling.

Qassimyar next argues Dick's amendment to the award, which changed "romantic relationship with wrongdoer, would...", to "could be seen as having a romantic relationship, would...", changed a factual finding, showing

prejudice to Qassimyar. There is no further argument or analysis that demonstrates this change demonstrates prejudice to Qassimyar.

The Court finds, in total, there is no indication that the arbitration award was the result of any prejudice to Qassimyar. Therefore, the Court denies the motion to vacate the award. The Court also grants the motion to confirm the arbitration award.

V. CONCLUSION

Plaintiff

Sabra Qassimyar motion to vacate the arbitration award is DENIED.

Defendant

L&F Brown Law Firm's motion to confirm the arbitration award is GRANTED.

The Court dismisses of Qassimya
claims, with prejudice

Judgment

is entered against Qassimyar in the sum of \$17,219.00, with statutory interest accruing from June 1, 2026.

LFB is ordered to give notice.

DATED:

July 22, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this

tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.